

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 6/12/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
5	30-2026-01545785 Luk vs. Johnson	The Court has read and considered the Plaintiff's Ex Parte Application: (1) To Continue June 12, 2026 MSJ/MSA Hearing; (2) Leave to Conduct Subsequent Deposition of Defendant Krista Johnson Pursuant to CCP §2025.610(b); (3) Order Shortening Time to Hear Motion for Discovery Sanctions; (4) Order Compelling Production of Text Messages and Communications Pursuant to CCP §§ 2023.010 and 2023.030 (ROA 118) and Defendant's Opposition (ROA 122). The Court continues the Motion for Summary Judgment or, in the alternative, Summary Adjudication in light of the newly discovered information. The Motion for Summary Judgment/Adjudication will be held on June 26, 2026 at 8:30 AM in Department C61. The Court grants the Plaintiff leave to conduct a subsequent limited deposition of Defendant Krista Johnson of no less than 1.5 hours as to the limited scope of the newly produced text messages with Magic Snake Pro. Plaintiff and Defendant's counsel are to arrange for the subsequent deposition to occur on or before June 18, 2026.

		The Court denies the Plaintiff's request to shorten the time as to the Motion for Discovery Sanctions. A party filing an ex parte application is seeking emergency relief. (Cal. Rules of Court, rule 3.1201(2) and 3.1202(c)). The standard is high. A party must face "irreparable harm" or "immediate danger" if relief is not granted. (Cal. Rules of Court, Rule 3.1202(c)). The Application must be accompanied by a declaration containing "affirmative factual showing" consisting of irreparable harm, immediate danger, or any other statutory basis for granting ex parte relief. (Cal. Rules of Court, Rule 3.1202(c).) Plaintiff failed to meet the high standard of irreparable harm or immediate danger as to this issue. The Court orders Defendant Krista Johnson to produce, no later than 3 pm on June 15, 2026, any and all text messages, emails, and communications between herself and Magic Snake Pro, Inc., or its personnel/staff, and any other mold or plumbing company Ms. Johnson hired. The Plaintiff is ordered to provide notice of the Court's ruling.
6	30-2026-01561663 FC Orange Associates LP vs. Borden	The Court has read and considered the Defendant's Motion to Compel Further Responses to Form Interrogatories (ROA 63), Motion to Compel Further Responses to Special Interrogatories (ROA 66), Motion to Compel Production/Inspection of Documents or Things (ROA 69), the Plaintiff's Oppositions to Each of the Defendant's Motions (ROA 78, 80 & 82) and the Defendant's Replies to the Plaintiff's Oppositions (ROA 90, 92, & 94). The Court takes Judicial Notice of the Request to Set Case for Trial (ROA 26), filed 5/8/2026; the Demand for Jury Trial (ROA 35), filed 5/11/2026; the Substitution of Attorney (ROA 32/33), filed 5/11/2026; the Clerk's Certificate of Mailing/Electronic Service (ROA 29); the Clerk's Certificate of Mailing/Electronic Service (ROA 59); and the 5/22/2026 Minute Order. Here, the Plaintiff filed a Request to Court the Case for Court trial on 5/8/2026. On 5/11/2026, Asian Americans Advancing Justice Southern California filed a substitution of attorney for the Defendants and filed a timely demand for a jury trial. On 5/12/2026, the Court Clerk's office mistakenly set the matter for a Court Trial and failed to provide notice to Asian Americans Advancing Justice Southern California, sending notice only to the Defendants personally. On May 22, 2026, this Court noticed the error made by the Clerk's Office in setting the matter for a Court Trial when there was a timely demand for a jury trial, so in Chambers the Court issued the Minute Order of 5/22/2026 (ROA 58) vacating the court trial of 5/26/2026 and setting a pretrial conference for 6/12/2026 and a jury trial for 6/15/2026. On May 22, 2026, the C61 Clerk notified the attorneys of the parties via email of the 5/22/2026 Minute Order. The initial trial date for this matter is June 15, 2026. There were no continuances or postponements filed, but a clerical error in the Court Clerk's office of failing to review the Court Docket, which showed that there was a demand for a jury trial, and failing to notify the attorney of record properly. As such, the Court is ordering that the discovery request made by the Defendant's Counsel was timely. It is understandable that Plaintiff's counsel may have been confused by the error created by the first issuing of the court